

19STCV10285 19STCV10285

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Division: Civil Law and Motion
Department: 506
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Case Number: 19STCV10285 Hearing Date: September 10, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MARIA CARRASCO,

Plaintiff,

vs.

TANIA SAROYAN,

Defendant.

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CASE NO.: 19STCV10285

[TENTATIVE] ORDER DENYING MOTION TO ENFORCE
SETTLEMENT

Dept. 506

8:30 a.m.

September 8, 2026

Plaintiff Maria Carrasco and Defendant Tania Saroyan mediated
this matter on appeal. On August 10, 2026,
Plaintiff filed a motion to enforce the settlement.

Courts may enter judgments pursuant to
written settlements signed by the parties.

(Elyaoudayan v. Hoffman (2003) 104 Cal.App.4th 1421, 1428; Code Civ.

Proc., § 664.6.) Strict compliance with the

statutory requirements is necessary before a court can enforce a settlement agreement. (Sully-Miller Contracting Co. v.
Gledson/Cashman

Construction, Inc. (2002) 103 Cal.App.4th 30, 37 (Sully-Miller).) The party seeking to enforce a settlement “must
first establish the agreement at issue was set forth ‘in a writing signed by the
parties’ (§ 664.6) or was made orally before the court. [Citation.]”

(Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

On November 24, 2025, the mediator sent
an email to counsel for both parties to “confirm[] the terms of the settlement that
was reached during the mediation between plaintiff/appellant MARIA CARRASCO and
defendant/respondent TANIA SAROYAN.” (Motion,

Ex. A.) He requested, "Please confirm with a 'YES' that, on behalf of your respective clients, you accept this settlement and that, in doing so, you confirm that your client intends this summary to be a binding and enforceable agreement — even in the absence of the planned long-form settlement — that may be introduced into evidence in any proceeding to enforce its terms." Attorney Tiffany Chukiat responded, on behalf of Defendant, "YES." Plaintiff "also accepted the mediator's proposal." (Nava Decl. ¶ 2.)

The Court cannot enter judgment for several reasons.

First, there is no writing signed by all parties.

Second, the proposed judgment does not accurately reflect all terms of the mediator's proposal in the email.

Third, even if the documents were compliant, it does not appear that the parties indeed agreed to all terms and that there was an actual meeting of the minds. From December 2025 through March 2026, the parties exchanged drafts of the long-form settlement agreement, and Defendant insisted on a different attorney fees provision. (See Opposition at p. 1.)

Plaintiff has not established that the agreement was set forth in a writing signed by the parties and that all terms were agreed to, and court enforcement of a settlement agreement requires strict compliance with the statute. (Sully-Miller, *supra*, 103 Cal.App.4th at p. 37.)

Accordingly, the motion to enforce settlement is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 8th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court